

		Thus, as can be seen, MP has not shown that the proposed sealing is narrowly tailored, as to the safety issues. MP's arguments as to decedent's privacy rights (moving papers at 3:18-4:1) also have facial appeal, but this argument rings hollow, in light of the limited information actually redacted, as well as the face of other exhibits containing private medical information that MP has not requested be redacted or sealed at all. For example, the coroner's report (MP Ex. N) contains detailed descriptions of decedent's body and other medical information / observations that could be considered private, but Ex. N is almost entirely unredacted. MP also contends that sealing is warranted because "the Parties produced and designated the Confidential Exhibits pursuant to the Parties' Protective Order, reflecting their bargained-for expectation of confidentiality." (Moving papers at 4:2-3.) However: "The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties." (CRC 2.551(a).)
9	Barrett vs. Southern California Edison 2025-01467144	Motion for Summary Judgment and/or Adjudication Defendant Southern California Edison Company's Objections to Plaintiff Brad Barrett's Separate Statement of Disputed Material Facts, filed on August 31, 2026 are OVERRULED in their entirety. Plaintiff Brad Barrett's Objections in his Opposition Separate Statement are not considered. Objections may not be included in the Separate Statement. They are not properly before the Court.

		Defendant Southern California Edison Company's ["SCE"] Motion for Summary Judgment is DENIED. SCE's Motion is based entirely upon the ground that the action is barred by the statute of limitations, CCP 338(d). SCE has the burden of proof on its affirmative defense. It must show that the limitations period accrued more than three years before this action was filed. SCE has not done so. Resolution of statute of limitations is normally a question of fact. [Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal4th 797, 810 Only when uncontradicted facts established through discovery are susceptible of one legitimate inference is summary judgment proper. [NBC Universal Media, LLC v. Superior Court (2014) 225 Cal.App.4th 1222, 1231] Here, to the extent the facts concerning the date of accrual are known, they are not uncontroverted nor are they susceptible of only one legitimate inference. Evidence offered by SCE to support their argument that Barrett knew or should have known the facts giving rise to his causes of action no later than 05/21 does not establish the date of accrual. SCE's argument relies upon inferences and even speculation about what Barrett knew and when he knew it. Even if the facts relied upon were uncontroverted, they are not sufficient to establish an inference about the date the statute of limitations accrued. SCE did not meet its burden to show that this action is barred by the statute of limitations. Even if SCE had met its burden of showing this action is barred, Barrett controverted the showing. He says that he did not know he did not know he needed to have three-phase power. [Plaintiff Barret's Separate Statement of Disputed Facts, 24, 26] SCE employee Jeffrey Azaula admitted that SCE had told Barrett that SCE had told him he could not get three-phase power." [Id., fact 27] A reasonable trier of fact could find in Barrett's favor.
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		The Court concludes the date of the accrual of the causes of action asserted in this case is a triable issue of material fact. The trial date remains. Moving party shall give notice.
10	Parker vs. City of Garden Grove 2025-01474666	Demurrer to Amended Complaint Defendant City of Garden Grove's unopposed Demurrer to the First Amended Complaint is SUSTAINED. Plaintiff Ana Christina Parker, in pro per, filed an untimely opposition which the Court has read and considered. Governmental Immunities Government Code section 818.4 provides that public entities are not liable for injuries "caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." Further, Government Code section 820.2 provides that "a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." Section 821.2 of the Government Code provides that "[a] public employee is not liable for an injury caused by his issuance . . . of . . . any permit . . . where he is authorized by enactment to determine whether or not such authorization should be issued. ..."